

PERFORMANCE WORK STATEMENT

FOR

APPELLATE ADVOCACY TRAINING

AT

JOINT BASE ANDREWS, MARYLAND

**02 February 2026
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SECTION I

1.0 DESCRIPTION OF SERVICES

1.1 General. The Appellate Defense Division (FOA/JAJA) represents Airmen and Guardians on appeal following conviction at courts-martial. Appellate defense counsel review trial records for legal error, develop issues, and advocate through written briefs and oral argument at the Air Force Court of Criminal Appeals, the Court of Appeals for the Armed Forces, and the U.S. Supreme Court. The Division also advises defense counsel worldwide concerning legal issues and preservation of errors for appeal.

1.1.1 Scope. The Contractor shall provide a two-to-three-day in-person training course to two-to-eight personnel instructing on strategic and written appellate advocacy skills relevant to criminal cases.

1.1.2 Qualification. The Contractor shall have a Juris Doctorate from an accredited law school. They must also have experience dealing with substantial, high-quality legal practice experience in reviewing appellate records and written appellate advocacy. The contractor must also display experience in appellate advocacy in criminal cases as well as prior teaching skills in written appellate advocacy. Contractor must be able to demonstrate the ability to teach, mentor, and provide constructive feedback on appellate strategy, development of appellate issues from appellate records, and appellate writing techniques and best practices.

1.2 Background. The Appellate Defense Division (FOA/JAJA) represents Airmen and Guardians on appeal following conviction at courts-martial. The unit conducts its mission by reviewing trial records for legal error, developing issues, and advocating primarily through written briefs at the Air Force Court of Criminal Appeals, the Court of Appeals for the Armed Forces, and the U.S. Supreme Court. This specific contract requirement includes the establishment and support of hands-on advocacy training to accelerate the development of new appellate defense counsel.

SECTION II

2.0 Task Descriptions

The Contractor shall provide all services, materials, supplies, equipment, and project supervision, as required in connection with this Performance Work Statement (PWS).

2.1 Task 1 Provide a two-to-three-day in-person training course around late August or early September each year of the contract period to two-to-eight personnel instructing on strategic and written appellate advocacy skills relevant to criminal cases.

- Skills covered will include:
 - How to analyze trial records;
 - How to brainstorm a theory of the case and appellate issues based on a review of the trial records;
 - How to develop a persuasive appellate story from the facts of the case;
 - How to develop an appellate strategy.
 - How to write a persuasive appellate brief, incorporating storytelling elements; primacy; recency; appropriate repetition; fact-based, evocative, and image-creating language and/or graphics; transitions; clarity; and juxtaposition; and
 - How to write a persuasive statement of facts in an appellate brief.
- Instruction will address skills both in theory and through interactive application by the students to a case they have reviewed in preparation for the training.
- The instruction will preferably focus on the defense perspective of criminal appeals (i.e., with a focus on representing the person convicted of the crime(s))
- The instruction will preferably qualify for credit as Continuing Legal Education.

SECTION III

3.0 SERVICE SUMMARY

The Contractor service requirements are summarized into performance objectives that relate directly to *mission essential items*. The performance threshold briefly describes the minimum acceptable levels of service required for each requirement and will be assessed on an “Acceptable” or “Unacceptable” basis. These thresholds are critical to mission success.

Performance Objective	PWS Paragraph	Performance Threshold	Method of Surveillance
SS – 1 Training duration	2.1	Provide two-to-three-day in-person training	100% Surveillance
SS – 2 Provide Training of skills using methodology identified	2.1	Training meets customer’s documented expectations 90% of the time, based on like scale questionnaire. Re-performance must occur within 6 months of notification	100% Surveillance

SECTION IV

4.0 DELIVERABLES

The Contractor shall provide deliverable(s) in a format mutually agreed upon by the Government and the Contractor.

The following enumerated deliverables are not expected to change. Due Date intervals are not expected to change but actual dates may need to be revised depending on actual contract start date.

NOTES

--Review your PWS and list all items that need to be included in your Deliverable table. You do not need to reference the table after each Deliverable.

--Due Date can either be Relative to the contract (X amount of days after a trip) or fixed (on the 15 of each month)

--Delivery should include method and to whom.

--Verify that each PWS paragraph is correct.

DELIVERABLE	PWS PARA	DUE DATE	DELIVERY
Schedule training for late August or early September	2.1	No later than 30 March of the contract year	By email to the COR
Training Agenda	2.1	No later than 2 months before the scheduled training	By email to the COR in Microsoft Word format
Conduct Training	2.1	No later than 30 September of the contract year	In-person
Submit any applicable travel voucher	2.1	5 Days after completion of TDY	As directed by Defense Travel System POCs
Employee List	6.10	Upon Request	By email to COR in MS Excel

SECTION V

5.0 GOVERNMENT FURNISHED PROPERTY, EQUIPMENT, MATERIAL, INFORMATION, OR SERVICES

5.1 Government Furnished Property, Equipment, Material, Information, or Services. The Government will not furnish property or services for this requirement.

5.2 Contractor Acquired Property. The contractor will not be required to acquire any property.

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SECTION VI

6.0 GENERAL INFORMATION

6.1 Scheduling Concerns.

6.1.1 Duty Hours. The Contractor shall have access to Government facility three to five days per week, Monday through Friday, eight hours a day, during the execution of the effort except when the Government facility is closed due to local or national emergencies, administrative closings, or similar Government directed facility closings, unless otherwise approved.

Contractor personnel are expected to conform to customer agency normal operating hours; however the Contractor may be required access to Government facility outside of duty hours based on the customer agency's needs. As a baseline, Contractor personnel shall work 8 hours per day, 32 hours for the three day.

6.1.2 Core Duty Hours and Base Shutdown/Inclement Weather. Core duty hours are 0800 - 1600, Monday through Friday (excluding federal holidays). The Contractor shall follow guidance of the installation containing their place of performance to determine reporting schedules whether due to a base closure or inclement weather. The website for guidance regarding status of performance for work to be performed in the National Capital Region (NCR) is <http://www.opm.gov/status/>.

6.2 Kickoff Meeting/Orientation Meeting

6.2.1 The Contractor shall schedule and coordinate a Project kick-off Meeting no later than (NLT) five (5) calendar days after contract award at the location approved by the Government. The meeting will provide an introduction between the Contractor personnel and Government personnel who will be involved with the contract. The meeting will provide the opportunity to discuss technical, management, and logistic issues; travel authorization; communication process between Government and Contractor; and reporting procedures. At a minimum, the attendees shall include key Contractor personnel, FOA/JAJA, key Government representatives, and the COR. The Contractor shall provide a Kick-Off Meeting Agenda that will include, but not be limited to, the following.

- Introduction of personnel
- Overview of project tasks
- Review of organization (complexity)
- Schedule (shows major tasks, milestones, and deliverables; planned and actual start and completion dates for each)
- Communication Plan/lines of communication overview (between both Contractor and Government)
- Travel notification and processes
- Security requirements (Building access, badges, Common Access Cards (CAC))
- Analytical Support Status Accreditation (ASSA) Documentation
- Invoice procedures
- POCs
- Roles and Responsibilities

- Any initial deliverables
- Other logistic issues
- Sensitivity and protection of information
- Additional issues of concern (Leave/back-up support)

6.2.2 The Contractor shall provide a draft copy of the agenda NLT 3 days after contract award for review and approval by the COR prior to finalizing. The Government will provide the Contractor with the number of participants for the kick-off meeting and the Contractor shall provide sufficient copies of the presentation for all present.

6.2.3 The Kickoff Meeting location will be held at the *Government's* facility, at another designated location, or through remote communications and the date and time will be mutually agreed upon by both parties.

6.3 Transition-In Plan

6.3.1 The Contractor shall provide a Transition-In Plan at the Kickoff Meeting, the plan shall facilitate the accomplishment of a seamless transition from the incumbent Contractor (if applicable) and incoming Contractor. The Contractor shall identify how it will coordinate with the incumbent Contractor and Government personnel to transfer knowledge regarding the following:

- Project management processes
- Points of contact
- Location of technical and project management documentation
- Status of ongoing technical initiatives
- Transition of key personnel
- Schedules and milestones
- Actions required of the Government
- Coordination of IT related programs, issues

6.3.2 The Contractor shall also establish and maintain effective communication with the incumbent Contractor and Government personnel for the period of the transition via weekly status meetings per the COR's direction.

6.4 Transition-Out Plan

6.4.1 The Contractor shall provide a Transition-Out Plan NLT than 60 calendar days prior to expiration of the contract. The plan shall facilitate the accomplishment of a seamless transition from the incumbent to and incoming Contractor (if applicable). In addition, the Contractor will continue to accomplish all tasks as outlined in the contract during this period. The Contractor shall identify how it will coordinate with the incoming Contractor and Government personnel to transfer knowledge regarding the following:

- Project management processes
- Points of contact
- Location of technical and project management documentation
- Status of ongoing technical initiatives

- Transition of key personnel
- Schedules and milestones
- Actions required of the Government
- Coordination of IT related programs, issues

6.5 Quality Control.

6.5.1. Quality Assurance. The Government shall rely on the Contractors' existing quality assurance system as the method to ensure that the requirements of the contract and performance thresholds are met; however, the Government reserves the right to monitor and evaluate the quality of services provided and compliance with the contract terms and conditions at any time.

6.5.2. Quality Control Plan (QCP). The Contractor shall develop and maintain an effective quality control program to ensure services are performed IAW this PWS, applicable laws and regulations, and best commercial practices. The Contractor shall develop and implement procedures to identify, prevent, and ensure non-recurrence of defective services with special emphasis placed on those services listed in this PWS. The Contractor's quality control program is the means by which it assures itself that the work complies with the requirement of the contract.

6.6 Emergency Operations/Mission Essential Personnel.

6.6.1. Continuation of Essential Contractor Services During Crisis. All services in this PWS HAVE NOT been defined or designated as essential services for performance during crisis IAW DFARs 252.237-7023, "Continuation of Essential Contractor Services."

6.7 Contractor Manpower Reporting Application (CMRA)

6.7.1 The Contractor shall report ALL labor hours (including subcontractor labor hours) required for performance of services provided under this contract via the secure Contractor Manpower Reporting Application (CMRA) data collection site. The Contractor is required to completely fill in all required data fields at: <http://www.SAM.gov>. Reporting inputs shall be for the labor executed during the period of performance for each Government fiscal year (FY), which runs 1 October through 30 September. The UIC for AFDW is FF16M0. While inputs may be reported anytime during the FY, all data shall be reported not later than 31 October of each calendar year. The Contractor may direct questions to the CMRA help desk.

6.7.2 Subcontractor Input in CMRA: Prime Contractors are responsible to ensure all subcontractor data is reported. Subcontractors will not be able to enter any data into CMRA, but will enter their information into a Bulk Loader spread sheet available from the AF CMRA helpdesk. Subcontractor shall fill in columns A-C then return it to the AF CMRA helpdesk after it's completed and a technician team will enter the information into CMRA.

6.8 Security Instructions

6.8.1 Physical Security. The Contractor shall safeguard all Government property, documents and controlled forms provided for Contractor use and adhere to the Government property requirements contained in this contract. At the end of each work day, all Government facilities, equipment, and materials shall be secured by a Government POC. Contractors are not allowed to secure Government facilities, equipment, and materials.

6.8.2 Access Control. The Contractor shall establish and implement methods of ensuring that no building access instruments issued by the Government are lost, misplaced or used by unauthorized persons. Access codes shall not be shared with any person(s) outside the organization. The Contractor shall control access to all Government provided lock combinations to preclude unauthorized entry. The Contractor is not authorized to record lock combinations without written approval by the Government COR. Records with written combinations to authorized secure storage containers, secure storage rooms, or certified vaults, shall be marked and safeguarded at the highest classification level as the classified material maintained inside the approved containers.

6.8.3 Pass and Identification Items. The Contractor shall ensure the pass and identification items required for contract performance are obtained for employees and non-government owned vehicles.

6.8.4 Retrieving Identification Media. The Contractor shall retrieve all identification media, including vehicle passes, from employees who depart for any reason before the contract expires.

6.8.5 Traffic Laws. The Contractor and its employees shall comply with base traffic regulations.

6.8.6 Weapons, Firearms, and Ammunition. Contractor employees are prohibited from possessing weapons, firearms, or ammunition, on themselves or within their Contractor-owned vehicle or privately-owned vehicle while on Joint Base Andrews or any other military facility.

6.8.7 Communications Security (COMSEC). Contractors may require access to COMSEC information on Air Force installations. The Contractor shall not require a COMSEC account. Access shall be controlled by the sponsoring agency. Access to COMSEC material by personnel is restricted to US citizens holding final US Government clearances. Such information is not releasable to personnel holding only reciprocal clearances. If it is determined the Contractor is required to access COMSEC information, the necessary training information and courses shall be provided by the COR. The DD Form 254 shall give further instructions on safeguarding and managing COMSEC material.

6.8.8 Contractor Identification. All Contractor personnel shall wear the Air Force issued Common Access Card at all times when away from their immediate work area so as to distinguish themselves from Government employees. When conversing with Government personnel during business meetings, over the telephone or via electronic mail, Contractor personnel shall identify themselves as a contractor to avoid situations arising where sensitive topics might be better discussed solely between Government employees. Contractors shall identify themselves on any attendance sheet or any coordination documents they may review.

Electronic mail signature blocks shall identify their company affiliation. Where practicable, contractors occupying collocated space with their government program customer should identify their work space area with their name and company affiliation or as a minimum “Contractor” after name.

6.8.9 Drug, Tobacco, and Alcohol Use Policy. The consumption of alcoholic beverages or illegal drugs by contractor personnel, while on duty, is strictly forbidden. Contractor shall immediately remove any employee who is under the influence of alcohol or drugs.

6.9 Travel

6.9.1 Local Travel. Local travel to attend meetings or events may be required at no cost to the Government. Travel within the National Capital Region commuting vicinity is considered a cost of doing business and shall not be separately reimbursed.

6.9.2 CONUS Travel: Prior to travel, the Contractor shall coordinate with, and receive approval from, the COR at least 10 business days prior to trip.

6.9.4 Further guidance for Contractor travel can be found at <https://www.defensetravel.dod.mil/site/faqctr.cfm>.

6.9.5 Trip Reports: Following each trip, the Contractor shall prepare and deliver Trip/After Action Reports to the COR IAW AFH 33-337. The trip report shall be completed in accordance with FOA/JAJA guidance.

6.10 Employee Accountability & Turnover

6.10.1 Staffing of Contractor Personnel. Contractor shall provide a stable workforce, throughout the duration of the contract, by maintaining a **XX**% or less employee turnover rate. No positions shall remain vacant for more than **XX** working days. The government shall not be billed for positions left vacant over **XX** working days unless the vacancy is due to government delay and otherwise approved by the CO.

6.10.2 List of Employees. The Contractor shall maintain a current listing of employees assigned under this contract and define who are key personnel. The list shall include the employee's name, and level of security clearance. The list shall be validated and signed by the company Facility Security Officer (FSO) and provided to the Contracting Officer, Program Manager, and Servicing Security Activity. An updated listing shall be provided upon request.

6.10.3 Contractor professionalism. The contractor shall:

- Present a professional appearance and maintain professional demeanor and conduct at all times.
- Conduct their work assignments IAW project schedules
- Function effectively and efficiently during extended periods of high pressure and stress.
- Function as an integral member of a team of highly trained professionals responsible for

the safety and security of USAF personnel and resources.

6.11 Miscellaneous Paragraphs.

6.11.1 Freedom of Information Act (FOIA). All official Government records affected by this contract are subject to the provisions of the FOIA (5 U.S.C. 552/DoD 5400.7-R/AF Supplement). Any request received by the Contractor for access/release of information from these records to the public (including Government/Contractor employees acting as private citizens), whether oral or in writing, shall be immediately brought to the attention of the CO for forwarding to the **XX** FOIA Manager to ensure proper processing and compliance with the Act.

6.11.2 For Official Use Only (FOUO). The Contractor shall comply with DoD 5400-7-R, Chapter 4, DoD Freedom of Information Act (FOIA) Program requirements. This regulation sets policy and procedures for the disclosure of records to the public and for marking, handling, transmitting, and safeguarding FOUO material.

6.11.3 Privacy Act. Work on this contract may require that personnel have access to information protected by the Privacy Act. Contractor personnel shall adhere to the Privacy Act, Title 5 of the U.S. Code, Section 552a and applicable agency rules and regulations when handling such information.

6.11.4 Records. All records created and received by the Contractor in the performance of this contract shall be maintained and readily accessible. Records shall remain the property of the Government.

6.11.5 Safety Concerns. The Contractor is solely responsible for compliance with OSHA standards for the protection of their employees. The Government is not responsible for ensuring that Contractors comply with "personal" safety requirements that do not present the potential to damage Government resources.

6.11.6 Project Policy. The Contractor shall comply with all industry standards. All work shall be done in accordance with all federal, local, and state laws and regulations.

6.11.7 Inherently Governmental Functions. The Contractor shall not perform inherently Governmental functions as defined in the Federal Acquisition Regulation (FAR) Subpart 7.5 in relation to this PWS.

6.11.8 Ethics. The Contractor shall not employ any person who is an employee of the US Government if employing that person would create a conflict of interest. Additionally, the Contractor shall not employ any person who is an employee of the Department of the Air Force, either military or civilian, unless such person seeks and receives approval according to DoDD 5500-7, Joint Ethics Regulation.

6.11.9 Professional Appearance of Work Space. The Contractor shall keep work space areas neat and orderly and avoid conditions leading to safety violations.

6.11.10 Non-Personal Services. The Government shall not supervise or task Contractor employees in any manner that generates actions of the nature of personal services, or that creates the perception of personal services. It is the responsibility of the Contractor to manage its employees directly and to guard against any actions that are of the nature of personal services, or give the perception of personal services to the Government or to Government personnel. If the Contractor feels that any actions constitute, or are perceived to constitute personal services, it is the Contractor's responsibility to notify the CO immediately. Non-personal Contractor services shall not be used to perform work of a policy/decision making or management nature.

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SECTION VII

APPENDIX 1

1.0 DEFINITIONS, ABBREVIATIONS, AND ACRONYMS

Contracting Officer (CO). The duly appointed Government agent authorized to award or administer contracts. The contracting officer is the only person authorized to contractually obligate the Government.

Defective Service. A service output that does not meet the standard of performance specified in the contract for that service.

Government Furnished Property (GFP). Facilities, equipment, tools, supplies, parts, or any other items furnished for the concessionaire's use by the Government. A full list, if applicable, is in Section V.

Performance Threshold. The minimum performance level of a performance objective required by the Government.

2.0 ACRONYMS